No. 86001-1-I

COURT OF APPEALS OF THE STATE OF WASHINGTON
DIVISION ONE

STATE OF WASHINGTON,
Respondent,

v.

JOSE HERNANDEZ-ESCOBAR,
Appellant.

BRIEF OF APPELLANT

NANCY P. COLLINS (28806)
Attorney for Appellant
WASHINGTON APPELLATE PROJECT
1511 Third Avenue, Suite 610
Seattle, WA 98101
(206) 587-2711

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A. INTRODUCTION.

Before the selected jurors were formally sworn and the trial testimony started, Juror 8 revealed that he had been primarily living in Arizona with his mother the past several years, while intermittently visiting his father in King County. He had arrived for his most recent visit with his father on the same day that Jose Hernandez-Escobar's trial started. Article I, section 22 guarantees an accused person the right to a trial by jurors of the county where the offense occurred. The court erroneously refused to disqualify Juror 8 despite his admission that he had not been living in the county before the trial began.

This error and others discussed below require a new trial as well as remand for a new sentencing hearing.

B. ASSIGNMENTS OF ERROR.

1. The court violated article I, section 22 and the governing statutes by seating a juror who did not meet mandatory residency requirements.

2. By failing to mandate jurors rely on separate and distinct acts to convict Mr. Hernandez-Escobar of child molestation and rape of a child, it violates double jeopardy to impose multiple punishments.

3. The court's refusal to instruct or otherwise direct the jurors to state the factual basis of their verdict violated Mr. Hernandez-Escobar's right to due process and to a meaningful appeal.

4. The court improperly imposed an overbroad community custody condition barring Mr. Hernandez-Escobar's travel.

5. The court impermissibly required Mr. Hernandez-Escobar to consent to unlawful and unauthorized searches of his home.

C. ISSUES PERTAINING TO ASSIGNMENTS OF ERROR.

1. In all criminal cases, article I, section 22 demands jurors who serve must be "of the county" where the charged offense occurred. A juror who served in Mr. Hernandez-Escobar's case informed the court had was primarily living in Arizona the past several years, where he had his driver's and motorcycle licenses, while his father lived in King County. The court erroneously ruled that Juror 8 met the mandatory residency requirements and permitted him to serve as a juror in this criminal case.

2. When two offenses are the same in law and fact, and it is not manifestly apparent that the jurors' verdicts rest on separate and distinct conduct, it violates double jeopardy to impose convictions for both offenses. Mr. Hernandez-Escobar's convictions for child molestation and rape of a child both may rest on sexual contact at the same time and place and the court did not instruct the jurors to rely

on separate and distinct acts. The double jeopardy violation requires vacation of the child molestation conviction.

3. The constitutional requirements of due process and the right to meaningful appeal in all criminal cases entitle a person convicted of a crime to obtain appellate review of the sufficiency of the evidence used to obtain a conviction. Here, Mr. Hernandez-Escobar objected to the broad three-year charging period and the court's refusal to narrow the charges to particular acts in its jury instructions. He further objected when the court refused to poll the jury to ascertain the factual basis of their verdicts. The State's failure to specify the acts underlying its charges and the court's refusal to require the jury to state the basis of its verdict deprived Mr. Hernandez-Escobar of his right to appeal and contest the sufficiency of the evidence against him.

4. A court may not impose unduly vague community custody conditions or give the community corrections officer (CCO) unfettered discretion to set the terms of community custody. This Court has ruled that a community custody condition deferring to the CCO to set geographical limitations is unduly vague. This same unlawful condition was imposed in Mr. Hernandez-Escobar's case.

5. A person on community custody maintains the right to be free from governmental intrusions in their private affairs absent reasonable suspicion. The court ordered Mr. Hernandez-Escobar to consent to suspicionless searches of his home. This unconstitutional condition must be stricken or modified.

D. STATEMENT OF THE CASE.

In late May 2020, A.C.D.C.'s mother noticed that A.C.D.C. was viewing pornography websites on her phone.

Vol. 3RP 1082.[1] A.C.D.C., who was 11 years old, blamed her mother's boyfriend, Jose Hernandez-Escobar, and alleged he sexually abused her. Vol. 3RP 1085-88. She specified one incident that occurred on either May 20 or 21, 2020, at a storage unit, and said similar acts occurred in their apartment in starting in 2017. Vol. 3RP 1058-64.

When Mr. Hernandez-Escobar learned of A.C.D.C.'s allegations, he called the police, told them of the accusation against him, waited for them to come speak to him, and said it was not true. Vol. 1RP 372-74, 805-06; Vol. 2RP 764; 4/5/23RP 158-59, 286-90. He suggested A.C.D.C.'s mother was lying to secure a visa to remain in the United States. Vol. 2RP 764; 4/5/23RP 288-90.

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[1] The transcripts filed in this case are consecutively paginated in two groups: (1) Date-specific volumes labelled Volume I to XXI, contain pretrial proceedings through the beginning of trial testimony on May 16, 2023; (2) Volumes 1 to 4, each of which contain multiple trial dates from May 17, 2023 to the close of the case. This brief will refer to the trial proceedings in Volumes 1-4 by the volume number and will use the date of the proceeding to refer to the remaining transcripts.

A few days later, Mr. Hernandez-Escobar went to the police station and sat for a lengthy interview with a detective and a second officer. Vol. 1RP 364-65. He again denied any sexual misconduct despite several "ruses" the police used in an effort to obtain a confession. Vol. 4RP 1602, 1612-16; 4/5/23RP 219-22, 240-56, 272.

The prosecution charged Mr. Hernandez-Escobar with three counts of rape of a child in the first degree and one count of child molestation in the first degree. CP 84-85. The four charges had the same three year charging period of January 1, 2017 through May 21, 2020. Id.

Mr. Hernandez-Escobar complained about the uncertainty regarding when the charged offenses occurred. 4/3/23RP 97-102; 5/10/23RP 1892-95; Vol. 4RP 1728, 1736. He asked for a Bill of Particulars or a specific election of certain acts, times, and places. 4/3/23RP 97-102; Vol. 4RP

1728. The court denied these requests. 5/10/23RP 1895; Vol. 4RP 1742.

At trial, A.C.D.C. alleged Mr. Hernandez-Escobar initially touched her sexually and then had intercourse with her about two or three times a week over several years. Vol. 3RP 1053-55, 1058-61, 1067. Even though these incidents occurred within the small apartment where she lived with her mother and at times her older sister, A.C.D.C. did not tell anyone and no one noticed anything wrong. Vol. 3RP 1066, 1079. There was no forensic or physical evidence and no eyewitnesses. Vol. 2RP 599, 616, 836-37.

The court instructed the jurors that each count had to rest on unanimous agreement. CP 466-69. It told them counts one, two, and three had to rest on separate and distinct occasions but did not tell them the same rule applied to count four, the charge of child molestation. CP 472-75. The court refused the defense request to specify the alleged act in any of the jury instructions

or narrow the charging period. Vol. 4RP 1724-55. It also rejected the defense request to poll the jurors at the end of the case to determine the factual basis of their verdicts. Vol. 4RP 1736, 1742, 1785-89. The jury convicted Mr. Hernandez-Escobar as charged without specifying the factual basis of their convictions. CP 482-85; Vol. 4RP 1895-1900.

Mr. Hernandez-Escobar's trial started on April 3, 2023. 4/3/23RP 64. Jury selection occurred over the next few weeks by video conference. On April 11, 2023, Juror 133 appeared for voir dire. 4/11/23RP 93. Juror 133 was ultimately selected to serve on the jury as Juror 8. 5/9/23RP 1861-62; 5/15/23RP 2015.

After jury selection but before the court swore in the jurors, Juror 8 sent an email to the court stating he had been living in Arizona for the past several years with his mother.

App. A.[2] He had arrived in Washington on April 3, 2023, where his father lived. 5/15/23RP 2018. Although he was born in King County, he had an Arizona driver's license and motorcycle license. App. A. The court ruled his connections to Washington were sufficient to make him a resident. 5/15/23RP 2024-25. The court permitted Juror 8 to serve on the case. Id.

Following Mr. Hernandez-Escobar's conviction, the court imposed a standard range sentence of life in prison with the possibility of parole after 280 months. CP 539, 542.

[2] This Court granted Mr. Hernandez-Escobar's motion to supplement the record with a redacted version of the email, a copy of which is attached as Appendix A.

E. ARGUMENT.

1. The court impermissibly allowed a juror to serve in the case who was not a resident of the county as required by article I, section 22 and the controlling statute.

a. Jurors must satisfy constitutional and statutory qualification requirements.

Article I, section 22 guarantees any person accused of a crime the right to have a speedy public trial "by an impartial jury of the county" where the charged offense allegedly occurred. Const. art. I, § 22 (emphasis added). The residency requirement for jurors is also codified in statute. RCW 2.36.070(3) disqualifies any person from serving on a jury if the person "is not a resident of the county in which he or she has been summoned to serve." RCW 2.36.010(7) states that a jury must be comprised of "qualified inhabitants of a particular district."

"The plain language of article I, section 22 confers on a defendant the right to be tried by a jury of the county in which the offense is charged to have been committed." City of Bothell

v. Barnhart, 156 Wn. App. 531, 536, 234 P.3d 264 (2010), aff'd, 172 Wn.2d 223, 257 P.3d 648 (2011). This constitutional directive exclusively exists in criminal cases, indicating the framers of the state constitution expressly mandated that jurors deciding whether a person committed a crime must come from the county where the allegations arose. Id.

Article I, section 22 is interpreted independently of the federal constitution. Barnhart, 172 Wn.2d at 232 n.2. Although the Sixth Amendment also guarantees an accused person the right to a jury "of the state and district wherein the crime shall have been committed," and a fair cross-section of the community, it does not expressly command that jurors be "of the county" where the offense occurred, unlike article I, section 22. Id.

Qualification requirements for jurors to serve, including citizenship, age, and residence, "go to the substance of a juror's function." People v. Foster, 480 N.E.2d 340, 341 (NY 1985).

They further the nexus between the jury and the community whose laws the jury is duty-bound to uphold. Reed v. Wainwright, 587 F.2d 260, 264 (5th Cir. 1979).

In Barnhart, the city of Bothell's municipal court drew its jury panel from parts of King and Snohomish counties because the city's boundaries spanned parts of both counties. 172 Wn.2d at 226-27. A statute permitted the city to summon jurors in this manner. Id. (citing RCW 2.36.050).

Two of the jurors seated in Barnhart came from King County, while the charged offense allegedly occurred in the Snohomish County part of Bothell. Id. The trial court refused to disqualify the two King County jurors based on their county of origin. Id. at 227. No party removed the jurors by peremptory strikes and they served in the case. Id.

This practice of drawing jurors from a city's boundaries without regard to the county of the juror violated article I, section 22 too. Id. at 229. Even though a statute permitted the

municipal court to summon jurors from within its boundaries regardless of their county, this statute did not trump the constitution's clear directive barring out-of-county jurors. Id. (citing RCW 2.36.050).

The Supreme Court explained that the plain language of the constitution must be enforced in criminal cases. Id. It is a "basic constitutional precept[] that the constitution means what it says, and when it is not ambiguous there is nothing for the court to construe." Id. at 232 (quoting Wash. State Motorcycle Dealers Ass'n v. State, 111 Wn.2d 667, 674, 763 P.2d 442 (1988)).

The framers of the state constitution had "clear understanding" of the legal meaning of "county" and specifically required jurors to be "of the county." Id. at 230. Jurors must "come from some part of the county" where the crime allegedly occurred to serve in a criminal case. Id. (quoting State v. Newcomb, 58 Wash. 414, 418, 109 P. 355

(1910)). It has "never" been the case that "a juror could be selected from outside the county." Id.

As the Court of Appeals also explained in Barnhart, a juror's "residence in the county wherein the charged crime was allegedly committed is a constitutional requirement that must be satisfied for an individual to qualify for jury service." 156 Wn. App. at 536.

"On its face, article I, section 22 does not permit a jury to include any individual who is not a resident of that county." Id. "A defendant's jury-trial right provided in article I, section 22 is satisfied only if all jurors reside in the county wherein the charged offense was allegedly committed." Id.

By statute, the legislature has long required jurors be residents of the county in civil cases as well. In 1909, the precursor to RCW 2.36.070 mandated that no person "competent to serve as a juror in the superior court of the state of Washington" unless that person is, among other

requirements, "[a] resident of the county in which he is called for service for more than one year preceding such time." Laws 1909, ch. 73, §1; see also 3 Rem. & Bal. Code, § 94-3.

It is the court's duty to remove jurors who do not meet mandatory qualifications. In State v. Willis, 135 Wash. 312, 312-13, 237 P. 711 (1925), the trial court declined to dismiss a juror who did not pay taxes in Washington, even though the then-existing juror qualification statute required jurors to be "an elector and taxpayer of the state." The Supreme Court ordered a new trial because the plain language of the juror qualification statute demanded that a juror must be taxpayer, which means they are "a person who pays taxes" in this state. Id. at 313.

The trial court must ensure the jurors who serve are qualified to do so. See State v. Guthrie, 185 Wash. 464, 475, 56 P.2d 160 (1936) (by law, the court is "charged . . . with the responsibility of insuring qualified" jurors are secured); see also

State v. Boyce, 24 Wash. 514, 520, 64 P. 719 (1901) ("it is the duty of the court to pass upon the qualification of the juror").

RCW 2.36.072(4) requires the trial court to excuse a potential juror if the juror does not meet mandated qualifications set forth in the controlling statute. State v. Marsh, 106 Wn. App. 801, 806-07, 24 P.3d 1127 (2001) (jurors properly excused based on their declarations that they were unable to communicate in English); see State v. Phillips, 65 Wash. 324, 326, 118 P. 43 (1911) (juror's citizenship "was sufficiently doubtful" for court to exclude from service).

In Mr. Hernandez-Escobar's case, the court ruled a juror was qualified to serve even though he said his primary residence was in Arizona.

b. The court erroneously failed to enforce the constitutional and statutory residency requirement.

After the parties exercised their peremptory strikes but before the jurors were sworn, seated Juror 8 (previously Juror

133 during voir dire) sent an email notifying the court that his "primary residency is in Wickenburg Arizona with my mom." App. A. He most recently came to Washington from Arizona on April 3, 2023, which was also the day Mr. Hernandez-Escobar's trial started. 4/3/23RP 64 ("this is the first morning of trial."); 5/15/23RP 2018.

In his email, he explained that in the past two years, he had obtained a driver's license and motorcycle license from "Yavapai county, AZ," and never had such licenses in Washington. App. A. His father lived in King County, but "[o]ver the course of the past 12 months, I have only lived with my dad in King County for approximately three months." Id.

After receiving the juror's email, the court and parties questioned him further in person. Juror 8 said he had only recently turned 18, on April 6, 2023, and was living with his mother in Arizona the majority of the time during the past few years. 5/15/23RP 2016. Although he had a Washington

identification card, he obtained it because he needed identification to fly back to Arizona by himself. 5/15/23RP 2017.

His father lived in King County and he would visit him, usually for a few months in the summer and at other times. 5/15/23RP 2019. He was not registered to vote and did not own property. Id.

He went to school in Arizona in person and then on-line from Arizona during COVID. 5/15/23RP 2017. He ultimately transitioned to being home schooled and got an on-line GED through Green River College in Washington, which his brother helped him arrange. 5/15/23RP 2017.

The trial court ruled that residency is a loose and fluid concept and deemed Juror 8's contacts with Washington sufficient to make him a resident. 5/15/23RP 2024-25.

However, Juror 8 lacked the necessary hallmarks of residency and was not "of the county" as article I, section 22 requires. Barnhart, 172 Wn.2d at 230-31.

Statutory residency requirements are instructive. State law requires a person to obtain a Washington license within 30 days of moving to this state. RCW 46.20.021(1). A person is not qualified to obtain a Washington driver's license unless they "surrender to the department all valid driver's licenses that any other jurisdiction has issued to him or her." Juror 8 had not surrendered his Arizona drivers and motorcycle licenses and did not indicate any plan to do so. App. A; RP 2018, 2022.

As another example, to get a hunting or fishing license, a person must prove their residency. RCW 77.080.075. To qualify as a resident for such a license, a person must:

> (1) "have maintained a permanent place of abode within the state for at least ninety days immediately preceding an application for a license,"
>
> (2) have "established by formal evidence an intent to continue residing within the state,"

> (3) not be licensed to hunt or fish as a resident of another state, and
>
> (4) not be receiving resident benefits of another state or country.
>
> RCW 77.080.075.

As another example, vehicle registration laws require a person to demonstrate their intent to live in this state on "more than a temporary or transient basis," by offering certain evidence of residency. RCW 46.16A.140(1). A person seeking to register a car in Washington must establish their residency by tangible evidence, including being a registered voter in the state or receiving public assistance benefits. RCW 46.16A.140(1).

Unlike the driver's license and hunting license requirements, a person may register a car as a resident if they also have a home in another state, but must meet additional conditions to qualify. RCW 46.16A.140(2). If a person also has a home in another state, they may be a resident for vehicle

registration purposes only if they meet "at least two of the following conditions:"

> (a) Maintains a residence in this state for personal use;
>
> (b) Has a Washington state driver's license or a Washington state resident hunting or fishing license;
>
> (c) Uses a Washington state address for federal income tax or state tax purposes;
>
> (d) Has previously maintained a residence in this state for personal use and has not established a permanent residence outside the state of Washington, such as a person who retires and lives in a motor home or vessel that is not permanently attached to any property;
>
> (e) Claims this state as his or her residence for obtaining eligibility to hold a public office or for judicial actions;
>
> (f) Is a custodial parent with a child attending public schools in this state.

RCW 46.16A.140(2) (emphasis added).

As these statutes demonstrate, an adult's legal residency requires more than indicating they are staying with a family member at that time, without taking any legal action.

Juror 8 had taken no steps to become a legal resident of the county. He did not surrender his Arizona driver's license and never claimed he intended to do so. 5/15/23RP 2018. He had not registered to vote. 5/15/23RP 2019. While he was born in the county, he had been living primarily in Arizona for several years. RP 2022. Although he had a Washington identification card, he explained that the he reason got this card was so he could fly back to Arizona, due to airport security requirements. 5/15/23RP 2018.[3] And taking an online class to obtain a GED, while living in another state, has never been recognized as a basis for showing proof of residency.

[3] Washington issues identification cards to people of any age who prove their identity and pay a fee. No proof of residency is required. See Washington State Department of Licensing, Get an ID card, https://dol.wa.gov/id-cards/get-id-card.

The court disregarded Juror 8's statement that his "primary" residence was in Arizona, reasoning that residency is fluid. This juror had arrived in Washington on the day trial started and had been there for one week when he participated in jury voir dire. 4/3/23RP 64; see 4/11/23RP 931. Juror 8's father's ties to King County do not make him a resident of the county as mandated by article I, section 22.

The prosecution asked the defense to agree to seat this juror when questions arose about his residency. 5/15/23RP 2023. The defense refused to do so and insisted it would not waive its objection to this juror's qualification to serve. 5/15/23RP 2023. However it told the court did not know if there was a basis to strike the juror. Id.

Regardless of defense counsel's uncertainty, the trial court definitively ruled the juror was a qualified resident and told the defense any objection would have failed. 5/15/23RP 2024-25. The court understood it was obligated to enforce the

requirements of juror qualifications. Id. But it misapplied the law in ruling that Juror 8 was a resident of the county. Id.; see State v. Quismundo, 164 Wn.2d 499, 505-06, 192 P.3d 342 (2008) ("A trial court's obligation to follow the law remains the same regardless of the arguments raised by the parties before it.").

Because the court conducted a full inquiry into the juror's status as a resident and the court ruled on the issue, explaining its reasoning on the record, the issue is manifest in the record and properly presented on appeal. RAP 2.5(a)(3). The court did not have discretion to seat a juror who lacked the constitutionally mandated status as a person "of the county." Const. art. I, § 22. The trial court erroneously construed this constitutional requirement.

c. The court's failure to enforce the constitutionally mandated juror requirements requires reversal.

A court's "[d]eparture from the constitutional jury selection requirements" requires "reversal and remand for a new trial." Barnhart, 172 Wn.2d at 233-34.

Mr. Hernandez-Escobar did not waive his right to qualified jurors. He refused the prosecution's request that he do so. 5/15/23RP 2023. While Mr. Hernandez-Escobar was uncertain of whether the juror must be excused, he questioned the juror in detail about his connection to the county, as did the court and prosecution. 5/15/23RP 2016-23. No further record is necessary to assess the error. Despite evidence establishing the juror's primary connection to Arizona, and lack of regular connection to the community in King County, the court ruled that this juror satisfied the qualifications to serve. 5/15/23RP 2024-25.

"[A]rticle I, section 22 guarantees the right of an accused to be tried by a jury drawn exclusively from the county wherein

the charged crime was alleged to have been committed." Barnhart, 156 Wn. App. at 537.

The trial court's ruling that Juror 8 met the constitutional and statutory qualifications to serve was wrong. Juror 8 arrived in the state only on the day trial began. He lacked the necessary connection to the county at the time he was summoned and seated on the jury mandated by article I, section 22. His arrival in the county from Arizona on the day trial started does not suffice even if he decided to stay longer in Washington as the trial progressed. Juror 8 served in the case and rendered a verdict even though he was not constitutionally or statutorily permitted to do so. This error violates article I, section 22 and requires reversal.

2. Without a clear jury finding that count four rested on separate and distinct acts than the other charges, it violates double jeopardy to punish Mr. Hernandez-Escobar multiple times for the same offense.

a. Double jeopardy guarantees require courts to ensure jurors rely on separate and distinct acts when offenses share the same time, place, and elements.

The constitutional bar against being twice put in jeopardy for the same offense prohibits the prosecution from punishing a person multiple times for the same offense. State v. Mutch, 171 Wn.2d 646, 661, 254 P.3d 803 (2011); Blockberger v. United States, 284 U.S. 299, 304, 52 S. Ct. 180, 76 L. Ed. 306 (1932); U.S. Const. amend. V; Const. art. I, § 9.

In order to constitute separate offenses, two crimes must each include an element not included in the other and must each require proof of a fact that the other does not. State v. Hughes, 166 Wn.2d 675, 682, 212 P.3d 558 (2009). Convictions for two offenses violate the constitutional prohibition on double jeopardy if either of these criteria are not met. Id.; In re

Personal Restraint of Orange, 152 Wn.2d 795, 818, 100 P.3d 291 (2004).

The test is not simply whether two offenses have different statutory elements. Orange, 152 Wn.2d at 818-19. Proper application of the same elements test focuses specifically on "the facts used to prove the statutory elements" rather than comparing generic statutory language. Id.

When a verdict does not specify the underlying act relied on by the jury, the verdict is ambiguous and principles of lenity require construing the ambiguity in favor of the accused. State v. Kier, 164 Wn.2d 798, 811, 194 P.3d 212 (2008). Double jeopardy violations are reviewed de novo and may be raised for the first time on appeal. Mutch, 171 Wn.2d at 661; State v. Turner, 102 Wn. App. 202, 206, 6 P.3d 1226 (2000).

Here, the court instructed the jury that rape of a child in counts one, two and three must rest on separate and distinct occasions. CP 466-68, 472-74. But it pointedly did not provide

this same instruction for child molestation charged in count four. All four counts rested on an identical three year charging period involving the same people. CP 472-75. A person could be convicted of child molestation based on the same conduct that constitutes the great offense of rape of a child. State v. Sanford, 15 Wn. App. 2d 748, 753, 477 P.3d 72 (2020).

As Sanford explained, "In the absence of a separate and distinct acts instruction" convictions for rape of a child and child molestation violate double jeopardy "if it is not clear that it was 'manifestly apparent to the jury that the State [was] not seeking to impose multiple punishments for the same offense' and that each count was based on a separate act." Id. at 931 (emphasis in original, quoting State v. Berg, 147 Wn. App. 923, 931, 198 P.3d 529 (2008)).

b. The court's instructions permitted the jury to rely on the same acts to convict Mr. Hernandez-Escobar of count four and one of the other counts.

The court instructed the jury that "sexual intercourse" is an essential element of counts one, two, and three, while "sexual contact" is an essential element of count four. CP 472-74. It further instructed the jury that the definition of "sexual intercourse" includes "sexual contact" between sexual organs of one person and the mouth or anus of another. CP 463. Child molestation also requires "sexual contact," although this contact may more broadly include touching of sexual or intimate parts of a person for the purpose of sexual gratification. CP 470.

These instructions are consistent with the statutory definitions of these similar offenses. RCW 9A.44.073(1); RCW 9A.44.083(1); RCW 9A.44.010(1), (2).

The court instructed the jury that counts one, two, and three must rest on separate and distinct occasions from each

other. CP 472-74. It did not instruct the jury that count four needed to rest on a separate and distinct occasion from counts one, two, or three. See CP 475.

This Court addressed a similar scenario in Sanford. The defendant was charged with both rape of a child and child molestation during the same time period. 15 Wn. App. 2d at 750. The acts of sexual intercourse included oral contact with sexual organs. Id. at 751. The court defined sexual intercourse to include sexual contact. Id. at 751. And while it told the jury to decide each count separately and unanimously, it did not say that each offense must be based on separate and distinct acts. Id.

On appeal this Court explained that "the jury instructions essentially informed the jury that the same acts that could constitute rape could constitute child molestation." 15 Wn. App. 2d. at 756. Because sexual contact is required for child molestation and could also satisfy the element of rape, the

court's instructions permitted jurors to rely on the same conduct for both convictions. Id.

The court's instructions here contain the same risk of duplicative convictions. The court instructions informed the jury that sexual contact satisfied the definition of rape of a child while also telling the jury that a broader definition of sexual contact governs child molestation. CP 463, 469.

In its closing argument, the prosecution pointedly did not elect an act that constituted the child molestation charged in count four. It told the jurors to "pick" any act they heard testimony about and agree upon it. Vol. 4RP 1797. Mr. Hernandez-Escobar asked the court to poll the jury, or make the jury instructions precise, to ascertain the basis of the conviction. See, e.g., Vol. 4RP 1708-09, 1720, 1736, 1785. But the court refused and the jury issued a general verdict. Vol. 4RP 1762-63, 1789.

When the prosecution argued to the jury about the incident on which it relied for count one, it discussed the sexual contact that occurred during this incident as well as the sexual intercourse. Vol. 4RP 1800. Similarly, when A.C.D.C. testified about her sexual interactions with Mr. Hernandez-Escobar, she described him using his mouth in her body and on her sexual organs. Vol. 3RP 1059, 1292. Her accusations of sexual contact occurring close in time as part of one course of events could constitute sexual intercourse as well as molestation.

Like the court's instructions, the prosecution reminded the jury that counts one, two and three needed to be based on separate and distinct incidents but did not tell the jury that this rule applied to count four. Vol. 4RP 1798.

c. The double jeopardy violation requires remand to strike Mr. Hernandez-Escobar's conviction in count four.

When jury instructions permit jurors to base their verdicts on the same conduct, reversal is required unless it was

"manifestly apparent" that the conviction for each count was based on a separate act. Mutch, 171 Wn.2d at 664; Sanford, 15 Wn. App. 2d at 756. This Court's "review is 'rigorous and among the strictest' to protect against double jeopardy." State v. Robinson, 8 Wn. App. 2d 628, 638, 439 P.3d 710 (2019) (quoting Mutch, 171 Wn.2d at 663). It will be "a rare circumstance" where the appellate court should affirm despite deficient jury instructions. Mutch, 171 Wn.2d at 664-665.

As Mutch explained:

> if it is not clear that it was "manifestly apparent to the jury that the State [was] not seeking to impose multiple punishments for the same offense" and that each count was based on a separate act, there is a double jeopardy violation.

Id., quoting Berg, 147 Wn. App. at 931 (emphasis added in Mutch). "The remedy for such a violation is to vacate the potentially redundant convictions." Id.

It is not manifestly apparent that Mr. Hernandez-Escobar's conviction for child molestation in count four rests

on separate and distinct conduct than that used to convict him of counts one, two, or three. When arguing to the jury about count one, the prosecution's closing argument told jurors to rely on an incident that involved both sexual contact and sexual intercourse. Vol. 4RP 1800. Its closing argument to the jury regarding count three told them to "pick" an occasion where sexual intercourse occurred. Vol. 4RP 1805. But as in Sanford, the court defined sexual intercourse to include sexual contact and the complainant testified about sexual contact that could potentially meet the elements of either rape or molestation. See Vol. 3RP 1059, 1292.

Where a verdict is ambiguous as to whether the jury improperly relied on the same conduct in returning guilty verdicts on two different charges, the reviewing court must resolve the ambiguity in the defendant's favor. State v. Kier, 164 Wn.2d 798, 811-14, 194 P.3d 212 (2008). Because the court failed to instruct the jury at Mr. Hernandez-Escobar's trial

that each charge had to be based on proof of a "separate and distinct act," it is not "manifestly apparent" in this case "that each count was based on a separate act." Mutch, 171 Wn.2d at 664. Applying this standard, which is "among the strictest," Mr. Hernandez-Escobar's child molestation conviction must be vacated and his case must be remanded for resentencing on only the remaining counts. Kier, 164 Wn.2d at 814; Sanford, 15 Wn. App. 2d at 757-58.

3. The court's refusal to require the jury to specify the basis of its conviction in a case resting on a three-year charging period and many possible allegations violated Mr. Hernandez-Escobar's rights to due process, juror unanimity, and to meaningfully appeal.

a. A unanimous jury finding on the acts essential to the charged crimes is a constitutionally mandated component of a fair trial.

Proof beyond a reasonable doubt of all essential elements is an "indispensable" threshold of evidence that the prosecution must establish to garner a conviction. In re Winship, 397 U.S.

358, 364, 90 S. Ct. 1068, 25 L. Ed. 2d 368 (1970); U.S. Const. amend. XIV; Const. art. I, §§ 3, 21.

This Court is prohibited from simply assuming that a properly instructed jury reached the correct result as long as there is some evidence in the record that supports a conviction. Jackson v. Virginia, 443 U.S. 307, 318-19, 99 S. Ct. 2781, 61 L. Ed. 2d 560 (1979); State v. Green, 94 Wn.2d 216, 221-22, 616 P.2d 628 (1980). This Court's role is to "assess the historical facts" and "determine whether the record evidence could reasonably support a finding of guilt beyond a reasonable doubt." Jackson, 443 U.S. at 318.

The Washington Constitution also guarantees criminal defendants the right to a unanimous jury verdict. Const. art. I, § 21; State v. Ortega-Martinez, 124 Wn.2d 702, 707, 881 P.2d 231 (1994). The jury must unanimously agree on the act that underlies a conviction, and this act must be the same one charged in the information. State v. Petrich, 101 Wn.2d 566,

569, 683 P.2d 173 (1984). When multiple acts could independently prove one count, the court must direct the jury to base its verdict on a unanimous finding that a certain act was proven beyond a reasonable doubt. Petrich, 101 Wn.2d at 572.

Cases involving multiple allegations also raise double jeopardy concerns. State v. Borshiem, 140 Wn. App. 357, 369, 165 P.3d 417 (2007). It violates double jeopardy to impose multiple punishments for the same act. Id.; U.S. Const. amend. V; Const. art. I, § 9. Double jeopardy violations are reviewed de novo on appeal. Mutch, 171 Wn.2d at 661.

In order to ensure a conviction satisfies the constitutional requirements of due process, juror unanimity, and double jeopardy, Washington guarantees a person convicted of a crime the right to appeal in all cases. Const. art. I, § 22. As part of the right to appeal, "the appellate court is obligated to make an independent de novo evaluation of the testimony and to reach

its own conclusions as to the facts." State v. Rolax, 104 Wn.2d 129, 141, 702 P.2d 1185 (1985) (Dore, J. concurring).

The appellate court cannot meaningfully review the factual basis of the conviction and the sufficiency of the State's evidence unless the jury specifies the basis of its conviction.

b. The court refused to require the prosecution to specify the underlying act for each count or require the jury to explain the factual basis of its verdict, insulating the case from appellate review.

Before trial, Mr. Hernandez-Escobar requested the prosecution specify the underlying acts it would rely upon to support each of the four charged counts. RP 97-100, 102; CP 26-27. The charging period spanned three years and the reports and discovery only specifically described one incident that happened shortly before Mr. Hernandez-Escobar's arrest. RP 98; CP 84-85. He requested a Bill of Particulars and complained it was unfair and "very challenging" to require Mr. Hernandez-Escobar to defend against unclear charges.

4/3/23RP 97, 100, 102, 5/10/23RP 1892-95. The court initially reserved but later denied this request. 5/10/23RP 1898.

At the close of the evidence, the prosecution said it would tell the jurors in its closing argument that counts one and two rested on discrete incidents: count one would be the first time the complainant said she had sexual intercourse and count two would be the final time, in late May 2020. Vol. 4RP 1673.

The defense asked the court to conform the jury instructions to the facts supporting these elections. Vol. 4RP 1723-24, 1728. It requested the court narrow the dates on the to-convict instructions to ensure the jury focused on these underlying acts for counts one and two, based on the testimony that at least approximated the dates of these offenses. Vol. 4RP 1723-24. The defense further complained that it was entitled to know the basis of the jury's verdict and that the court should poll the jury at the end of the case unless the instructions specified the basis of the counts. Vol. 4RP 1736, 1742.

The defense reasoned that the court's instructions would tell the jurors not to rely on arguments of counsel for the law or the evidence. Vol. 4RP 1731. It contended the court's instructions needed to explain the factual basis of the charges because the jury was not bound by argument of counsel. Vol. 4RP 1731-32, 1750-51.

The court refused to alter the three-year date range or give details alluding to the factual basis of any charged count, believing that such an instruction would alter the charging document. Vol. 4RP 1719. It insisted it must include the full three-year charging period in each to-convict instruction. Vol. 4RP 1729, 1753, 1762-63.

In the prosecution's closing argument, it did not elect any particular acts for counts three or four. It told the jurors to "pick" an act to serve as a basis for these offenses. Vol. 4RP 1797, 1805. It told the jurors to decide for themselves which act

they would rely upon, at any time within the charging period. Id.

When the jury rendered its verdict finding Mr. Hernandez-Escobar guilty of the four charged counts, he asked the court to conduct a Petrich-based polling of the jurors. Vol. 4RP 1895, 1897. He explained that the court's instructions and the verdict forms did not indicate the factual basis for the jury's convictions. Vol. 4RP 1897-98.

The court refused to conduct any polling on the basis of the convictions. Vol. 4RP 1898-99. It ruled it would be improper for the court to inquire into the facts that the jurors relied upon to convict Mr. Hernandez-Escobar. Id.

c. The court impermissibly refused to require a clear election by the prosecution or factual explanation of the underlying act on which the jury's verdict rests.

Mr. Hernandez-Escobar is unable to meaningfully appeal the sufficiency of the evidence or the double jeopardy implications of the jury's verdict without knowing the factual

basis of the verdict. The prosecution elicited evidence multiple potential acts that could constitute the charged crimes. But it refused to specify the act on which it sought a verdict for counts three and four, and told the jurors to pick.

Mr. Hernandez-Escobar cannot know whether whatever act the jurors picked met the essential elements of the charge. He cannot obtain this Court's review the sufficiency of the evidence the jurors relied upon. The State insulated its case from due process review and deprived Mr. Hernandez-Escobar of his right to appeal in this case by obtaining only general, ambiguous verdicts. At a minimum, the court was wrong when it ruled it had no authority to request jurors state the underlying act that was the basis of the conviction. Without this check on the jury's verdict, Mr. Hernandez-Escobar cannot exercise his right to due process of law, to be protected from double jeopardy, to a unanimous jury verdict, and to appeal in his case.

Mr. Hernandez-Escobar is entitled to a new trial to enforce these rights.

4. The court impermissibly authorized the Department of Corrections to set arbitrary travel restrictions and conduct suspicionless searches.

a. Community custody conditions may not exceed the court's constitutional or statutory authority.

Limitations on fundamental constitutional rights during community custody must be "reasonably necessary to accomplish the essential needs of the state and the public order." State v. Riles, 135 Wn.2d 326, 350, 957 P.2d 655 (1998). A condition of community custody must be sufficiently definite that ordinary people understand what conduct is illegal, and the condition must provide ascertainable standards to protect against arbitrary enforcement. State v. Bahl, 164 Wn.2d 739, 752-53, 193 P.3d 678 (2008); U.S. Const. amend. XIV; Const. art. I, § 3.

Community custody conditions must be authorized by statute or crime-related. RCW 9.94A.505(9); RCW 9.94A.715;

see In re Postsentence Review of Leach, 161 Wn.2d 180, 184, 163 P.3d 782 (2007). A "crime-related prohibition" is "an order of a court prohibiting conduct that directly relates to the circumstances of the crime for which the offender has been convicted." RCW 9.94A.030(10).

The burden is on the State to demonstrate a condition of community supervision is statutorily authorized. State v. Hunley, 175 Wn.2d 901, 910, 287 P.3d 584 (2012). This Court reviews a sentencing court's imposition of community custody conditions for an abuse of discretion. State v. Johnson, 184 Wn. App. 777, 779, 340 P.3d 230 (2014). A sentencing court abuses its discretion if its decision is manifestly unreasonable or based on untenable grounds, and imposition of a condition without authorization is manifestly unreasonable. Id.

b. The court entered an overbroad prohibition on geographical travel that is subject to arbitrary enforcement.

As a condition of community custody, the court ordered Mr. Hernandez-Escobar must "Remain within geographic boundary, as set forth in writing by the Community Corrections Officer." CP 547 (standard condition 8).

This Court has ruled the identical condition is unduly vague. In re Pers. Restraint of Bratcher, No. 39758-1-III, 2024 WL 1406540, at *2-3 (Apr. 2, 2024); In re Pers. Restraint of Alaniz, No. 39631-2-III, 2024 WL 1209297, at *6 (Mar. 21, 2024).[4]

As Alaniz and Bratcher explain, "A condition of community custody is unconstitutionally vague if it either fails to give fair warning of what is forbidden or fails to give ascertainable standards that will prevent arbitrary enforcement." State v. Johnson, 197 Wn.2d 740, 747, 487 P.3d 893 (2021);

[4] Unpublished, cited as persuasive authority under GR 14.1.

see Bratcher, 2024 WL 1406540 at *2; Alaniz, 2024 WL 1209297, at *6.

A community custody condition that empowers a CCO to set the terms or definitions are unconstitutionally vague as they do not protect against arbitrary enforcement. See Bahl, 164 Wn.2d at 754 (condition prohibiting access and possession of pornographic materials "as directed by the supervising Community Corrections Officer" failed to protect against arbitrary enforcement); State v. Irwin, 191 Wn. App. 644, 655, 364 P.3d 830 (2015) (geographic boundary condition requiring CCO to define locations where "children are known to congregate" leaves condition open to arbitrary enforcement and therefore renders it void for vagueness).

By deferring discretion to the CCO to set the terms or definitions of a condition, the court "only makes the vagueness problem more apparent, since it virtually acknowledges that on

its face it does not provide ascertainable standards for enforcement." Bahl, 164 Wn.2d at 758.

This condition requires Mr. Hernandez-Escobar to remain within the "geographic boundary" set by his CCO. CP 547. But it does not provide any guidance or clarification regarding the geographic boundaries to be set such that an ordinary person would understand the conduct proscribed or otherwise define "geographic boundary." CP 547. By granting the CCO unfettered discretion to set geographic boundaries, it risks arbitrary enforcement.

Consequently, the condition is unconstitutionally vague on its face as it both fails to give Mr. Hernandez-Escobar fair warning of the conduct that is forbidden and lacks ascertainable standards to protect against arbitrary enforcement.

The condition should be stricken or rewritten so that it sets ascertainable standards for enforcement.

c. The court gave DOC unbridled, suspicionless access to Mr. Hernandez-Escobar's home without authority of law.

Special condition 8 states that Mr. Hernandez-Escobar shall:

> Consent to DOC home visits to monitor compliance with supervision. Home visits include access for purposes of visual inspection of all areas of the residence in which the offender lives or has exclusive/joint control/access.

CP 547.

People on community custody "do not forfeit all expectations of privacy in exchange for their release into the community." State v. Cornwall, 190 Wn.2d 296, 303, 412 P.3d 1265 (2018); Const. art. I, § 7. In order to search a person's property during community custody, the "CCO must have 'reasonable cause to believe' a probation violation has occurred." Id. at 304; RCW 9.94A.631(1).[5] "This threshold

[5] RCW 9.94A.631(1) authorizes a search only "[i]f there is reasonable cause to believe that an offender has violated a condition or requirement of the sentence. . . ."

requirement protects an individual from random, suspicionless searches." Cornwall, 190 Wn.2d at 304.

In addition to reasonable cause, there must be a nexus between the property searched and the alleged community custody violation. Id. This nexus is required because a person on community custody retains a right to privacy under article I, section 7. Id. "[T]he individual's privacy interest is diminished only to the extent necessary for the State to monitor compliance with the particular probation condition that gave rise to the search." Id.

This condition mandates that Mr. Hernandez-Escobar submit to a search of any area within the home that he can access. CP 547. It does not require the State to have any reason for the search other than the broad notion that it is "monitoring compliance" with any condition for any reason. Id.

As Cornwall explained, "there is no compelling argument that the 'legitimate demands' of the probation system require

open-ended property searches." 190 Wn.2d at 305 (quoting State v. Olsen, 189 Wn.2d 118, 125, 399 P.3d 1141 (2017)).

This condition does not require the CCO to have reasonable suspicion that Mr. Hernandez-Escobar is violating his conditions of release before demanding he must consent to a search of his home or any phone or computer to which he has access. CP 547. It does not require a nexus between the item searched and the suspected violation, contrary to article I, section 7. State v. Reedy, 26 Wn. App. 2d 379, 395, 527 P.3d 156, 2023 WL 2856749 (2023), rev. denied, 1 Wn.3d 1029 (2023) (citing unpublished portion of Reedy pursuant to GR 14.1).

"[T]his purely legal issue is clear and requires no additional factual development." Id. Mr. Hernandez-Escobar will be subject to these searches as soon as he is released. Id.; see Bahl, 164 Wn.2d at 751-52 (finding challenge to conditions ripe where defendant incarcerated and would be subjected to

them on release); see also State v. Wallmuller, 194 Wn.2d 234, 238, 449 P.3d 619 (2019) (reaffirming propriety of pre-enforcement challenges to community custody conditions involving legal questions).

In addition, this Court may not refuse to review a pre-enforcement challenge to a community custody condition without considering the hardship to the person who must wait for an unconstitutional search before challenging the condition. State v. Sanchez Valencia, 169 Wn.2d 782, 786, 239 P.3d 1059 (2010). The condition requires immediate consent upon DOC request without allowing for a reasonable opportunity to mount a legal challenge.

Mr. Hernandez-Escobar is entitled to be free from warrantless searches of his home absent reasonable suspicion he is in violation of a particular condition of his release. Cornwall, 190 Wn.2d at 304. The search condition should be stricken or appropriately modified on remand.

F. CONCLUSION.

Mr. Hernandez-Escobar's case should be remanded for a new trial and alternatively, the unconstitutional sentencing conditions must be amended on remand.

Counsel certifies this brief complies with RAP 18.17 and contains 7927 words.

DATED this 19th day of September 2024.

Respectfully submitted,

NANCY P. COLLINS (28806)
Washington Appellate Project (91052)
Attorneys for Appellant
nancy@washapp.org
wapofficemail@washapp.org

APPENDIX A

IN THE SUPERIOR COURT FOR THE STATE OF WASHINGTON IN AND FOR THE COUNTY OF KING
STATE OF WASHINGTON, Petitioner/Plaintiff, vs. HERNANDEZ-ESCOBAR, Respondent/Defendant. No. 20-1-03731-8 KNT. JUROR CORRESPONDENCE.
Juror #133
From: (redacted)
Sent: Monday, May 15, 2023 8:55 AM
To: Court, Campagna <Campagna.Court@kingcounty.gov>
Subject: Possible juror concern
I am uncertain if this is of concern with my service as a potential juror, but I thought I had better check with you.
My primary residency is in Wickenburg Arizona with my mom. My drivers license and motorcycle license were all obtained the past 2 years in Yavapai county, AZ.
I only have a WA ID card. I come up for the summers to live with my dad. Over the course of the past 12 months, I have only lived with my dad in King County for approximately 3 months.